manager of BI, Andrew Harvey, Managing Agent of BI, C.E. Rhenius, assistant commissioner of salt and abkari and other Europeans appeared for the prosecution. SSNCo came up frequently in the various depositions. With VOC describing the entire trial as ‘a farce’, the conviction was a foregone conclusion. But the draconian sentence was beyond belief. Delivering his judgment on 7 July, Justice A.F. Pinhey held VOC’s position in SSNCo against him. Describing him as ‘the real controlling force in the affairs of the [Swadeshi shipping] company’ (para 110) he dismissed the testimony of all defence witnesses with the words: ‘there is not a single witness on the side of the defence who was not shown to be in some way interested or an ardent partisan…. Many were owners of shares in the Swadeshi Steam Navigation Company … of which [VOC] was the moving spirit’ (para 21). In the end, Pinhey concluded that VOC was ‘obviously disloyal to the core and a man of a type most dangerous to society’.[71] Labelling Siva as only a tool in his hands, he sentenced him to ten years of transportation while imposing a life imprisonment (twenty years) of transportation on VOC for abetting the original offence. In the second case —for his own seditious speeches—VOC got another life sentence, though the judge was gracious to add that ‘it is only nominal, for it must perforce be concurrent’!

VOC was immediately transferred to Coimbatore Central Jail, and the harshest punishments—including the pulling of the oil mill, usually the task of draught animals—were meted out to him. With iron in his soul, he remained unbroken, continuing to criticize prison officials whenever the opportunity presented itself. When a riot broke out in the jail, VOC provided witness and blamed the jail authorities’ inhuman treatment of the inmates for the outbreak. Apart from continually petitioning higher authorities: the governor of Madras, the viceroy of India and the King–Emperor of India, he explored all legal routes both for remission and relief. In the high court, his sentence was reduced to six years of rigorous imprisonment even though the chief justice confirmed his conviction. VOC was finally released in late December 1912.